

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN UKRAINE

INTRODUCTION & FRAMEWORK

Community action changes project outcomes in Ukraine, and Ukrainian communities recently proved it in a way few countries in this series can match: when wartime measures narrowed environmental assessment and closed public access to the register, Ukrainian environmental organisations did not accept it — they campaigned, took part in the Ministry's redrafting, and brought the matter to the **Aarhus Convention Compliance Committee**, whose recommendations helped produce amendments that restored the scope of assessment, including for reconstruction projects, and created a register open to the public again. Participation rights, lost in an emergency, were argued back — a rare and instructive thing. And Ukrainian communities have a tool most of the countries in this series lack: **everything happens on a public online register**. Under the **Law on Environmental Impact Assessment No. 2059-VIII**, adopted in 2017 to transpose the European Union's assessment directive and replace the Soviet-era system of "state ecological expertise," a developer proposing a planned activity must publish a **notification**, prepare an **EIA report**, and go through **public discussion including mandatory public hearings** before the authority issues an **EIA conclusion** — which must be taken into account before any permit for the activity can be granted, and whose breach can bring the **suspension or termination** of the activity. There is no shortage of hard truths here — a full-scale war above all. But the tools are real, and they have just been defended in the hardest of circumstances.

A community in Ukraine works with genuinely strong legal tools, at war and rebuilding, and they are real. The distinctive lever is the **public Unified Register of Environmental Impact Assessment and the binding EIA process**: under Law No. 2059-VIII, a project's notification, EIA report, mandatory public hearings, the comments received, and the EIA conclusion are all held on a public register; the authority is required to consider the comments; and the conclusion must be taken into account before any permit — everything on the record where a court can see it, with the developer, not the public, bearing the cost of the public discussion. Behind it sits the **Aarhus Convention** on access to information, public participation, and access to justice — and, as the wartime restoration proved, its Compliance Committee can argue rights back. The **courts** can annul an EIA conclusion reached through defective procedure; protest, petition, and litigation are lawful. The reconstruction now opening can be held to the **restored assessment and the international reconstruction partners' safeguards**, so the rebuilding is done right. And the **transboundary assessment** reaches cross-border harms. These tools are general — the public register and binding EIA, the Aarhus rights, the courts, and the reconstruction safeguards reach any planned activity, from a factory to a reconstruction project. But these tools have real limits, and this guide states them plainly, for the counterweight is substantial. Ukraine is fighting a full-scale war, and in areas affected by hostilities or occupation none of the ordinary mechanisms operate normally. Martial law has justified derogations, and the balance between transparency and security is unsettled. Reconstruction will bring enormous pressure to build fast, and the temptation to shorten procedure with it. Institutions are stretched, and the pre-war record of enforcement was uneven. And a community whose comments are considered and rejected still needs a court to go further. So winning here rarely means a project's outright abandonment — more often a negative EIA conclusion, or one so conditioned the project changes; commitments written into the conclusion and enforced through permits; or a defective procedure identified and the conclusion annulled by a court. Aim for what these tools can genuinely deliver — a project scrutinised on the public record, its conclusion conditioned or annulled, the reconstruction built right, the rights defended as they were before — through the

register, the binding EIA, the Aarhus rights, and the courts.

The Whole Strategy in One Idea

You win here by working the public record the law creates. Put your comments into the Unified Register during the mandatory public discussion, where the authority is required to consider them and a court can later see what was done; press the binding EIA conclusion toward a negative or conditioned outcome; hold the reconstruction to the restored assessment and the partners' safeguards; invoke the Aarhus rights, which have just been argued back from wartime derogation; and, where the procedure is defective, take the conclusion to court to be annulled.

Be Honest About Which Fight You're In

Ukraine has genuinely strong tools, but honesty about the wartime counterweight is the first discipline. In areas of hostilities or occupation the ordinary mechanisms do not operate; martial law has justified derogations and the transparency-security balance is unsettled; reconstruction will pressure institutions to build fast and shorten procedure; enforcement has been uneven; and a rejected comment still needs a court. So the realistic aim is rarely a project abandoned — more often a negative or conditioned EIA conclusion, commitments enforced through permits, or a defective conclusion annulled by a court — through the register, the binding EIA, the Aarhus rights, and the courts.

HOW THE SYSTEM WORKS

Who Actually Decides

A Ukrainian project runs through a public, EU-modelled assessment system. The **environmental authority** issues the binding **EIA conclusion** after the public discussion. The **Unified Register** holds the whole record. The **permit-issuing bodies** cannot grant a permit without taking the conclusion into account. The **courts** can annul a conclusion reached through defective procedure. And the **Aarhus Convention and its Compliance Committee** stand behind the participation rights. Map who issues the conclusion and the permit, and check the register, before spending a week on it.

How a Project Moves — and Where You Jump In

A planned activity moves through notification, the EIA report, the public discussion and mandatory hearings, the EIA conclusion, and then the permit. Your entry point is the public discussion: the moment to put comments into the register that the authority is required to consider, and that a court can later review. Beyond it lie the conditioned or negative conclusion, the permit stage, and — if the procedure was defective — the courts. Enter at the public discussion, on the public record.

Follow the Money and the Permissions

Follow the register: the notification, EIA report, hearings, comments, and conclusion, all public. Follow the conclusion: whether it is negative, conditioned, or clean, and whether the permit took it into account. Follow the procedure: whether the notification, hearings, and consideration of comments were properly done — a defect can annul the conclusion. Follow the reconstruction: which international partners fund it and what safeguards they bring. The leverage lies in the register, the binding conclusion, the procedure, and the reconstruction safeguards.

Who's Supposed to Be Watching

Ukraine's watchers are real: the environmental authority and its binding conclusion, the public Unified Register, the permit bodies bound to consider the conclusion, the courts, and the Aarhus Convention and its Compliance Committee. The honest caution is the war — occupied and hostility areas, martial-law derogations, stretched institutions. But the register and the Aarhus rights, just defended, give a case genuine handles.

QUICK REFERENCE: SUCCESS RATES

Effort in Ukraine is genuinely effective, through a public, EU-modelled assessment system just defended in wartime. The single most decisive move is **putting comments into the public register during the mandatory discussion and pressing the binding EIA conclusion — and, where procedure is defective, taking it to court**, because the authority is required to consider the comments, the conclusion binds the permit, and a court can annul a conclusion reached improperly. The public register and binding EIA are the distinctive levers; the Aarhus rights the backstop; the courts the enforcer; the reconstruction safeguards the chance to build right. What winning realistically means is rarely abandonment but a negative or conditioned conclusion, commitments enforced, or a conclusion annulled — real outcomes, in a country at war.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the project?** — the planned activity, and its entry on the Unified Register. **Where is it in the process?** — notification, EIA report, public discussion, conclusion, or permit. **What can be commented on?** — the mandatory public discussion, where comments must be considered. **Was procedure proper?** — the notification, hearings, and consideration of comments, a defect in which can annul the conclusion. **Is it reconstruction?** — subject to the restored assessment and the partners' safeguards. Pick the entry — the public discussion, the conclusion, or a procedural defect — that gives the clearest handle.

STEP 2: DOCUMENTATION

Build the case in layers, on the public record. **Layer one: the project and the record** — the notification, EIA report, and conclusion on the Unified Register, and the harm the project poses. **Layer two: the substance and the procedure** — the environmental case for a negative or conditioned conclusion, and whether the notification, hearings, and consideration of comments were properly done. **Layer three: the channel** — the public discussion for comments, the permit stage for enforcement, the courts for annulment, and the Aarhus rights behind them. A case put into the register during the discussion, and grounded in both substance and procedure, is one the authority must consider and a court can review.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **register record**: the notification, EIA report, hearings, comments, and conclusion, all public on the Unified Register. Gather the **substance record**: the environmental harm and the case for a negative or conditioned conclusion. Gather the **procedure record**: whether the notification, hearings, and consideration of comments were properly done. Gather the **permit record**: whether the permit took the conclusion into account. Gather the **reconstruction record**: the partners and their safeguards. Ukraine's public register makes much of this genuinely and openly obtainable.

STEP 3: BUILDING LOCAL SUPPORT

Ukraine's civil society just proved its strength by arguing rights back in wartime. Build with the **affected community**, whose comments go on the record; the **environmental organisations**, experienced and effective, who led the Aarhus fight; the **legal advocates** who can bring the annulment case; and the **reconstruction and international partners** whose safeguards matter. Frame the cause around the public record and the rule of law the country is fighting to uphold — and, for reconstruction, around building right — so the effort aligns with Ukraine's own European path.

STEP 4: THE PUBLIC REGISTER, THE BINDING CONCLUSION & THE COURTS — WORKING THE RECORD

Set expectations honestly: the levers are real and strong, though the war sets a substantial counterweight.

The Public Register and the Binding EIA

The distinctive lever is the **public Unified Register and the binding EIA process** under Law No. 2059-VIII: comments put into the register during the mandatory public discussion must be considered, and the EIA conclusion must be taken into account before any permit, with breach risking suspension or termination. Put your case on the record and press the conclusion.

The Aarhus Rights and the Courts

The **Aarhus Convention** rights — just argued back from wartime derogation through its Compliance Committee — secure access to information, participation, and justice, and the **courts** can annul an EIA conclusion reached through defective procedure. Invoke the Aarhus rights and, where procedure is defective, the courts.

The Reconstruction Safeguards and the Transboundary Assessment

The reconstruction can be held to the **restored assessment and the international partners' safeguards**, and the **transboundary assessment** reaches cross-border harms. Pursued together — the register and binding EIA, the Aarhus rights and courts, and the reconstruction safeguards — these levers work the public record, in a country at war.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each audience. **For the environmental authority**: here are comments, on the register, that the law requires you to consider, and the case for a negative or conditioned conclusion. **For the permit body**: here is a conclusion you must take into account before any permit. **For the court**: here is a defective procedure — no proper notification, a hearing that could not be attended, comments never considered — warranting annulment. **For the reconstruction partners**: here is rebuilding to be held to your safeguards and the restored assessment. **For the Aarhus bodies**: here are participation rights to uphold. **The golden rule**: put your case on the public record during the discussion, press the binding conclusion, and take a defective procedure to court.

STEP 5: MEDIA STRATEGY

In a democracy fighting for its European future, media and the rule of law matter. Frame the story around **the public record and building right**: a project whose harm is on the register for all to see, and a reconstruction that must be done lawfully and well, not fast and badly — the very transparency Ukrainian civil society just defended. Carry it through the Ukrainian and European press, the environmental organisations, and the reconstruction partners. A few cautions: keep it accurate and grounded in the register and the law; respect the wartime security balance; and let the public record, the Aarhus rights, and the rule of law carry the weight.

EMAILS & LETTERS

Keep every message factual, grounded in the register and Law No. 2059-VIII.

8A — To the environmental authority: submit comments on the register and make the case for a negative or conditioned EIA conclusion.

8B — On the public discussion: assert the right to participate and to have comments considered.

8C — To the permit body: insist the EIA conclusion be taken into account before any permit.

8D — To the court (through counsel): set out the procedural defect warranting annulment of the conclusion.

8E — On the Aarhus rights: invoke the access, participation, and justice rights, just restored.

8F — To a reconstruction partner: hold the rebuilding to the restored assessment and your safeguards.

8G — On the transboundary assessment: raise a cross-border harm for assessment.

8H — To the press and public: frame the case around the public record and building right.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: find the project on the Unified Register; check where it is in the process; put comments into the public discussion before it closes. **The fastest-moving levers**: the public register and the mandatory discussion, and the binding conclusion. **Emergency action**: if the discussion is open, comment now on the record; if a conclusion was reached through defective procedure, prepare the court challenge; for reconstruction, invoke the restored assessment and the partners' safeguards. Throughout, work the public record and the binding conclusion.

WHEN THE SYSTEM IS TILTED

Even with strong tools the field can tilt: a full-scale war, martial-law derogations, and reconstruction pressure to build fast. Recognise it, and lean on the levers the tilt cannot easily escape — the public register and binding EIA, the Aarhus rights just argued back, the courts, and the reconstruction safeguards. In Ukraine these genuinely work. And accept, honestly, that occupied and hostility areas are beyond the ordinary mechanisms, that the transparency-security balance is unsettled, and that a rejected comment still needs a court — so the work is record-based, procedural, and, where needed, litigated.

WHEN IT'S ACTUAL CORRUPTION — AND WHO BENEFITS

Ukraine is a democracy with a public register and an active civil society, so the more usual challenge is reconstruction pressure and uneven enforcement rather than hidden capture — though vigilance matters. Where a project is pushed against the register or the conclusion, respond through the strong channels the law provides: the public discussion and comments, the binding conclusion, the permit stage, the courts, the Aarhus bodies, and the reconstruction partners' safeguards. **On safety:** Ukraine is a democracy at war; the ordinary environmental work is lawful and public, but respect the wartime security balance and the areas where hostilities make normal work impossible. Keep it grounded in the register and the law, and mindful of the security context.

INTEGRATION & TIMELINE

The steps run in parallel, on the public record. The project's register entry feeds the comments, the conclusion, and — if procedure is defective — the court case at once; the community and environmental organisations organise together; the reconstruction safeguards run alongside. A rough timeline: **weeks one to four**, find the project on the register and put comments into the discussion; **months two to six**, press the conclusion toward negative or conditioned, hold the permit, and prepare any court challenge; **beyond**, enforce the commitments or annul a defective conclusion, and hold the reconstruction to its safeguards. The core discipline: register-based, procedure-grounded, and litigated where needed.

FINAL ASSESSMENT

Effort in Ukraine is genuinely effective, and distinctively so, because it has a public, EU-modelled environmental assessment system — a Unified Register that puts a project's whole record, and a community's comments, where the authority must consider them and a court can review them; a binding EIA conclusion that governs the permit; and Aarhus participation rights that Ukrainian civil society has just, remarkably, argued back from wartime derogation through the Convention's Compliance Committee. This guide has been honest about the substantial counterweight: a full-scale war, occupied and hostility areas beyond the ordinary mechanisms, martial-law derogations, reconstruction pressure to build fast, stretched institutions, and the fact that a rejected comment still needs a court. Winning here rarely means a project abandoned — more often a negative or conditioned conclusion, commitments enforced through permits, or a defective conclusion annulled by a court. But those are real outcomes, in a country at war. A community that puts its case on the public register during the mandatory discussion, presses the binding conclusion, invokes the Aarhus rights, holds the reconstruction to the restored assessment and the partners' safeguards, and takes a defective procedure to court can genuinely change what gets built. The tools are real, and the distinctive strength is a country that, even under invasion, keeps its environmental decisions on a public record and fights to keep them there.